

Court No. - 3

Case :- WRIT - C No. - 16747 of 2016

Petitioner :- Mitthu Lal

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Satyendra Kumar Pandey

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Heard learned counsel for the petitioner and Sri Deepak Kapoor holding brief of Sri Mahboob Ahmad, who has accepted notice on behalf of respondent-Corporation.

Under one time settlement scheme floated by respondent-Corporation the petitioner was required to deposit a sum of Rs.45,966/- in four instalments. Admittedly, the petitioner failed to deposit the said instalments. He approached this Court by filing Writ Petition No.13495 of 2015 which was disposed of vide order dated 19.3.2015 giving liberty to the petitioner to approach authority concerned by making an application under clause 6.5 of the Electricity Supply Code, 2005.

Grievance of the petitioner is that in pursuance to the liberty granted by this Court an application was made by him on 30.3.2015 to respondent no.4 but without taking any decision on the same not only the electricity supply has been disconnected but further demand of arrears is being made.

Once this Court passed an order, respondent no.4 was under obligation to comply with the same and take a decision on the application made by the petitioner.

In any view of the matter, even though prima facie, inaction on the part of respondent no.4 appears to be contemptuous, one more opportunity is given to him to comply with the order dated 19.3.2015 passed by this Court.

Accordingly, writ petition stands disposed of by giving liberty to the petitioner to make a fresh application along with certified copy of this order before respondent no.4, Executive Engineer (Distribution) Purvanchal Electricity Distribution Nigam Limited, 73, Tagore Town, Allahabad within a period of two weeks from today with direction to the said authority to decide the matter by a reasoned and speaking order within a further period of four weeks from the date of making an application.

It is also provided that in case, petitioner deposits a sum of Rs.50,000/- within two weeks, electricity connection shall be restored forthwith.

Order Date :- 13.4.2016
Hasnain